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FACSIMILE TRANSMITTAL

PAGE 1 OF 14

WITHOUT PREJUDICE PURSUANT TO FRE RULE 408

March 27, 2009

VIA FACSIMILE NO. (313) 845-7512 and (313) 323-2647

VIA FEDERAL EXPRESS NO. 796467323613

David G. Leitch, Esq.
Group Vice President and General Counsel
Ford Motor Company
One American Road
Dearborn, MI 48126

REPLY DEMANDED

Re: Infringement of WE SPEAK CAR Service Mark

Dear Mr. Leitch:

We represent Frank's Auto Supply, Inc. ("FAS") in connection with its intellectual property matters.

FAS is a recognized leader in the wholesale and retail auto parts and accessories business throughout the territory in which it operates seven stores, namely, southwestern Pennsylvania. FAS's reputation extends not only throughout southwestern Pennsylvania but also into the Tri-State areas of eastern Ohio and northern West Virginia. FAS is the owner of United States Trademark Application Serial No. 77/699,917 for WE SPEAK CAR covering "wholesale and retail store services featuring auto parts and accessories." Since at least as early as 2003, FAS has invested substantially in the development of its WE SPEAK CAR service mark in connection with the services covered by the application. FAS's prior use of WE SPEAK CAR entitles it to the exclusive use of WE SPEAK CAR within its territory. FAS is also owner of the top level domain names www.wespeakcar.com and www.autosupermarket.com. FAS considers its service mark and domain names as valuable assets that it intends to protect to the fullest extent allowable by law.

STATEMENT OF CONFIDENTIALITY

The information in this facsimile is privileged and confidential and is intended only for the use of the named recipient. Disclosure or copying of this document or its contents other than by the named recipient is prohibited. If this document is received in error, it should be returned to sender.

If there are any reception problems, please call 412-471-8815. Original copy and any enclosures will be sent via regular mail.

David G. Leitch, Esq.

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March 27, 2009

Our attention has recently been directed to your new, dynamic advertising campaign titled "We Speak Car," which debuted March 3, 2009 during the hit television show *American Idol*. We understand that the advertising campaign highlights your segment-exclusive Ford SYNC™ technology and delivers the claim that the Ford FUSION is America's most fuel-efficient mid-size sedan. From contemporaneous press coverage, we understand Ford intends to spend \$60-80 million on your "We Speak Car" advertising campaign.

We find it difficult to believe that you are unaware of our client FAS's prior rights in and to WE SPEAK CAR at the time you adopted the identical mark. Not only is FAS a customer of Ford Motor Company, it has also extensively advertised its services within its territory in newspapers and on radio and television. Almost all of that advertising incorporates its WE SPEAK CAR service mark. An early newspaper circular incorporating WE SPEAK CAR is attached for your review. Any reasonable trademark search should have identified FAS's use of WE SPEAK CAR and, certainly, the existence and ownership of its top-level domain name, namely, www.wespeakcar.com.

Your use of the identical mark "We Speak Car" in connection with substantially similar goods and services that are offered by FAS under its WE SPEAK CAR mark constitutes trademark infringement, false designation of origin, and unfair competition in violation of the laws of the Commonwealth of Pennsylvania and the Federal Trademark Act of 1946 (the "Lanham Act"), 15 U.S.C. Section 1051 *et seq.* As such, we have filed (but not served) an appropriate Complaint in the United States District Court for the Western District of Pennsylvania. A copy of that Complaint is also attached for your review.

We presume that your knowing and willful adoption of the "We Speak Car" tagline was an intentional attempt to trade on the goodwill and reputation that FAS has worked for over five years to create or to destroy that goodwill in order to co-opt the mark for your own. FAS is already aware of several instances of actual confusion, in what has become a classic case of reverse confusion.

While FAS is prepared to take aggressive action in connection with your unauthorized use of its WE SPEAK CAR mark and domain name, we are writing in an effort to first resolve this matter amicably. Therefore, we seek your assurances that you will (i) immediately cease and desist from using WE SPEAK CAR, or anything confusingly similar thereto, as a trademark, service mark, or trade name in connection with the sale and/or service of automobiles or automobile parts or accessories; and (ii) engage in corrective advertising in order to clarify the relationship, specifically the lack thereof, between FAS and Ford Motor Company. Of course, an appropriate accounting will also need to be made.

Please contact me no later than **April 1, 2009** to confirm that you will comply with the terms of this letter. If we do not hear from you on or before that date, we will assume that you do not intend to comply and FAS will be forced to take whatever legal action is necessary to protect its rights. This letter was written without prejudice to any of FAS's rights and remedies, all of which are expressly reserved.

David G. Leitch, Esq.

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March 27, 2009

We are optimistic that you will respect the intellectual property rights of FAS and will fully cooperate in order to minimize further costs to either party. Please contact me directly if you have any questions or would like to discuss this matter.

Very truly yours,

A handwritten signature in black ink, appearing to read "J. Matthew Pritchard", with a stylized flourish at the end.

J. Matthew Pritchard

JMP/llm

Attachments

cc: Mr. Jim Farley (via facsimile only)
Mark S. Sparschu, Esq. (via email only)

J. Matthew Pritchard

From: ecf_intake_pawd@pawd.uscourts.gov
Sent: Friday, March 27, 2009 3:08 PM
To: pawd_ecf@pawd.uscourts.gov
Subject: Activity in Case 2:09-cv-00365-AJS FRANK'S AUTO SUPPLY, INC. v. FORD MOTOR COMPANY Complaint

This is an automatic e-mail message generated by the CM/ECF system. Please **DO NOT RESPOND** to this e-mail because the mail box is unattended.

*****NOTE TO PUBLIC ACCESS USERS***** Judicial Conference of the United States policy permits attorneys of record and parties in a case (including pro se litigants) to receive one free electronic copy of all documents filed electronically, if receipt is required by law or directed by the filer. PACER access fees apply to all other users. To avoid later charges, download a copy of each document during this first viewing. However, if the referenced document is a transcript, the free copy and 30 page limit do not apply.

U.S. District Court

Western District of Pennsylvania

Notice of Electronic Filing

The following transaction was entered on 3/27/2009 at 3:08 PM EDT and filed on 3/27/2009

Case Name: FRANK'S AUTO SUPPLY, INC. v. FORD MOTOR COMPANY

Case Number: 2:09-cv-365

Filer: FRANK'S AUTO SUPPLY, INC.

Document Number: 1

Docket Text:

COMPLAINT against FORD MOTOR COMPANY (Filing fee \$350, receipt number 1189162), filed by FRANK'S AUTO SUPPLY, INC. (Attachments: # (1) Civil Cover Sheet) (plh)

2:09-cv-365 Notice has been electronically mailed to:

J. Matthew Pritchard jmpritchard@webblaw.com, webblaw@webblaw.com

2:09-cv-365 Filer will deliver notice by other means to:

The following document(s) are associated with this transaction:

Document description:Main Document

Original filename:n/a

Electronic document Stamp:

[STAMP dcecfStamp_ID=1098469114 [Date=3/27/2009] [FileNumber=1712083-0]
] [734f9d0696086e144e2fd84feb49f1368bdae5ae46e7dc0acd764e63d784aaf09e6

3/27/2009

15b7678ed1400a651e0dcb6be42e79a583e8d0e0b32e4cc11686c94ba013a]]

Document description:Civil Cover Sheet

Original filename:n/a

Electronic document Stamp:

[STAMP dcecfStamp_ID=1098469114 [Date=3/27/2009] [FileNumber=1712083-1
][d10336e7468c12d79300f50bdf45bd757f04d1fbee3c0a61946bc3b56d4ae5ef44f
0111c42842359bf7c2aefef17d5f88486db9a714889d89ffbfd348cf77f57]]

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

I. (a) PLAINTIFFS <u>Frank's Auto Supply, Inc.</u> (b) County of Residence of First Listed <u>Fayette</u> (EXCEPT IN U.S. PLAINTIFF CASES) (c) Attorneys <u>The Webb Law Firm</u> <u>436 Seventh Avenue, 700 Koppers Building, Pittsburgh, PA 15219 412-471-8815</u> (Firm Name, Address, and Telephone Number)	DEFENDANTS <u>Ford Motor Company</u> County of Residence of First Listed Defendant _____ (IN U.S. PLAINTIFF CASES ONLY) NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE LAND INVOLVED. Attorneys _____ Attorneys (if Known) _____
---	--

II. BASIS OF JURISDICTION (Place an "X" in One Box Only) ☐ 1 U.S. Government Plaintiff ☐ 2 U.S. Government Defendant ☒ 3 Federal Question (U.S. Government Not a Party) ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)	III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant) (For Diversity Cases Only) <table style="width: 100%;"> <tr> <th></th> <th>PTF</th> <th>DEF</th> <th></th> <th>PTF</th> <th>DEF</th> </tr> <tr> <td>Citizen of This State</td> <td>☐ 1</td> <td>☐ 1</td> <td>Incorporated or Principal Place of Business In This State</td> <td>☐ 4</td> <td>☐ 4</td> </tr> <tr> <td>Citizen of Another State</td> <td>☐ 2</td> <td>☐ 2</td> <td>Incorporated and Principal Place of Business In Another State</td> <td>☐ 5</td> <td>☐ 5</td> </tr> <tr> <td>Citizen or Subject of a Foreign Country</td> <td>☐ 3</td> <td>☐ 3</td> <td>Foreign Nation</td> <td>☐ 6</td> <td>☐ 6</td> </tr> </table>		PTF	DEF		PTF	DEF	Citizen of This State	☐ 1	☐ 1	Incorporated or Principal Place of Business In This State	☐ 4	☐ 4	Citizen of Another State	☐ 2	☐ 2	Incorporated and Principal Place of Business In Another State	☐ 5	☐ 5	Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6
	PTF	DEF		PTF	DEF																				
Citizen of This State	☐ 1	☐ 1	Incorporated or Principal Place of Business In This State	☐ 4	☐ 4																				
Citizen of Another State	☐ 2	☐ 2	Incorporated and Principal Place of Business In Another State	☐ 5	☐ 5																				
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6																				

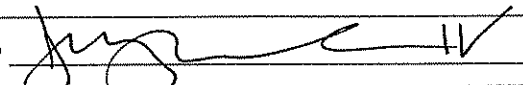
IV. NATURE OF SUIT (Place an "X" in One Box Only)					
CONTRACT ☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	TORTS PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury CIVIL RIGHTS ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 444 Welfare ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 440 Other Civil Rights	PERSONAL INJURY ☐ 362 Personal Injury - Med. Malpractice ☐ 365 Personal Injury - Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability PRISONER PETITIONS ☐ 510 Motions to Vacate Sentence Habeas Corpus: ☐ 530 General ☐ 535 Death Penalty ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition	FORFEITURE/PENALTY ☐ 610 Agriculture ☐ 620 Other Food & Drug ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 630 Liquor Laws ☐ 640 R.R. & Truck ☐ 650 Airline Regs. ☐ 660 Occupational Safety/Health ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Mgmt. Relations ☐ 730 Labor/Mgmt. Reporting & Disclosure Act ☐ 740 Railway Labor Act ☐ 790 Other Labor Litigation ☐ 791 Empl. Ret. Inc. Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 463 Habeas Corpus-Alien Detainee ☐ 465 Other Immigration Actions	BANKRUPTCY ☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☒ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIW C/DWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS-Third Party 26 USC 7609	OTHER STATUTES ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 810 Selective Service ☐ 850 Securities/Commodities/Exchange ☐ 875 Customer Challenge 12 USC 3410 ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 892 Economic Stabilization Act ☐ 893 Environmental Matters ☐ 894 Energy Allocation Act ☐ 895 Freedom of Information Act ☐ 900 Appeal of Fee Determination Under Equal Access to Justice ☐ 950 Constitutionality of State Statutes

V. ORIGIN (Place an "X" in One Box Only)						
☒ 1 Original Proceeding	☐ 2 Removed from State Court	☐ 3 Remanded from Appellate Court	☐ 4 Reinstated or Reopened	☐ 5 Transferred from another district (specify) _____	☐ 6 Multidistrict Litigation	☐ 7 Appeal to District Judge from Magistrate Judgment

VI. CAUSE OF ACTION	Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity): <u>15 U.S.C. 1051 et seq.</u> Brief description of cause: <u>Trademark Infringement</u>
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VII. REQUESTED IN COMPLAINT:	☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23 DEMAND \$ _____ CHECK YES only if demanded in complaint: JURY DEMAND: ☒ Yes ☐ No
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VIII. RELATED CASE(S) IF ANY (See Instructions):	JUDGE _____	DOCKET NUMBER _____
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DATE <u>27 March 2009</u>	SIGNATURE OF ATTORNEY OF RECORD 
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FOR OFFICE USE ONLY

RECEIPT # _____	AMOUNT _____	APPLYING IFP _____	JUDGE _____	MAG. JUDGE _____
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IN THE UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF PENNSYLVANIA

THIS CASE DESIGNATION SHEET MUST BE COMPLETED

PART A

This case belongs on the ☐ Erie ☐ Johnstown ☒ Pittsburgh) calendar.

1. **ERIE CALENDAR** - If cause of action arose in the counties of Crawford, Elk, Erie, Forest, McKean, Venang or Warren, OR any plaintiff or defendant resides in one of said counties.

2. **JOHNSTOWN CALENDAR** - If cause of action arose in the counties of Bedford, Blair, Cambria, Clearfield or Somerset OR any plaintiff or defendant resides in one of said counties.

3. Complete if on ERIE CALENDAR: I certify that the cause of action arose in _____ County and that the _____ resides in _____ County.

4. Complete if on JOHNSTOWN CALENDAR: I certify that the cause of action arose in _____ County and that the _____ resides in _____ County.

PART B (You are to check ONE of the following)

1. ☐ This case is related to Number _____ Judge _____
2. ☒ This case is not related to a pending or terminated case.

DEFINITIONS OF RELATED CASES:

CIVIL: Civil cases are deemed related when a case filed relates to property included in another suit or involves the same issues of fact or it grows out of the same transactions as another suit or involves the validity or infringement of a patent involved in another suit

EMINENT DOMAIN: Cases in contiguous closely located groups and in common ownership groups which will lend themselves to consolidation for trial shall be deemed related.

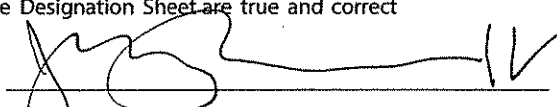
HABEAS CORPUS & CIVIL RIGHTS: All habeas corpus petitions filed by the same individual shall be deemed related. All pro se Civil Rights actions by the same individual shall be deemed related.

PART C

1. CIVIL CATEGORY (Place x in only applicable category).

1. ☐ Antitrust and Securities Act Cases
2. ☐ Labor-Management Relations
3. ☐ Habeas Corpus
4. ☐ Civil Rights
5. ☒ Patent, Copyright, and Trademark
6. ☐ Eminent Domain
7. ☐ All other federal question cases
8. ☐ All personal and property damage tort cases, including maritime, FELA, Jones Act, Motor vehicle, products liability, assault, defamation, malicious prosecution, and false arrest
9. ☐ Insurance indemnity, contract and other diversity cases.
10. ☐ Government Collection Cases (shall include HEW Student Loans (Education), VA Overpayment, Overpayment of Social Security, Enlistment Overpayment (Army, Navy, etc.), HUD Loans, GAO Loans (Misc. Types), Mortgage Foreclosures, S.B.A. Loans, Civil Penalties and Coal Mine Penalty and Reclamation Fees.)

I certify that to the best of my knowledge the entries on this Case Designation Sheet are true and correct

DATE 27 MARCH 2009 ATTORNEY ATTORNEY AT LAW 

NOTE: ALL SECTIONS OF BOTH SIDES MUST BE COMPLETED BEFORE CASE CAN BE PROCESSED.

**IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF PENNSYLVANIA**

FRANK'S AUTO SUPPLY, INC.,	)	
	)	Civil Action No.
Plaintiff,	)	
	)	JURY TRIAL DEMANDED
v.	)	
	)	
FORD MOTOR COMPANY,	)	
	)	
Defendant.	)	

COMPLAINT

NOW comes Plaintiff, Frank's Auto Supply, Inc. ("FAS"), by its counsel, and avers the following for its Complaint against Defendant Ford Motor Company ("Ford"):

1. FAS is a corporation organized and existing under the laws of Pennsylvania, with its principal place of business at 75 South Beeson Avenue, Uniontown, Pennsylvania.
2. On information and belief, Defendant Ford is a Delaware Corporation, with its principal place of business at One American Road, Dearborn, Michigan.
3. This is an action for unfair competition, arising under the Federal Trademark Act of 1946, as amended, commonly known as the Lanham Act, 15 U.S.C. §§1051 et seq., and the statutes and common law of the Commonwealth of Pennsylvania.
4. This Court has jurisdiction over the subject matter and parties of this action pursuant to 28 U.S.C. §§1331, 1332(a) and 1338(a) and (b), and under the principle of supplemental jurisdiction pursuant to 28 U.S.C. §1367.
5. Venue is proper in this judicial district under 28 U.S.C. §1391(b) and (c) and 1400(b) because Ford is subject to personal jurisdiction in this judicial district.

6. FAS has been in the business of selling automobile parts since 1938 and presently has seven locations in Pennsylvania providing wholesale and retail distribution of auto parts and accessories.

7. Since at least as early as June 8, 2003, FAS has been continuously using the mark WE SPEAK CAR in interstate commerce in connection with its auto supply services via in-store displays, signage, newspaper, radio and television advertising, and on its websites, www.autosupermarket.com and www.wespeakcar.com. FAS has thereby obtained ownership of trademark rights in WE SPEAK CAR for its auto supply services.

9. FAS has been the beneficial owner of the domain name www.wespeakcar.com since at least as early as April of 2008 and is now the owner of the domain name.

8. WE SPEAK CAR has come to be associated with and represent the goodwill that FAS has developed in its business.

10. FAS is the owner of pending United States Trademark Application No. 77/699,917, filed on March 26, 2009, for the mark WE SPEAK CAR in connection with “wholesale and retail store services featuring auto parts and accessories.”

11. On or about March 3, 2009, Ford launched a dynamic and multi-faceted advertising campaign promoting its 2010 Ford Fusion and Fusion Hybrid vehicle models. The advertising campaign includes an overall theme and tag line of “We Speak Car,” apparently in attempt to capture more of the small and mid-size sedan market, or “car” market, as opposed to only the truck and sport utility vehicle market. On information and belief, Ford’s advertising campaign is nationwide, and includes promotional activity within this judicial district.

12. On March 3, 2009, as part of Ford’s advertising campaign, Ford paid to have three different television commercials air during the immensely popular *American Idol* program

on the Fox Network. Each of the three television commercials began with the narrator's voice saying "We Speak Car." On information and belief, these same advertisements are still being run on other television networks and programs, and Ford is also engaging in radio, print, billboard, and online advertising featuring the "We Speak Car" tag line.

12. On information and belief, Ford has spent at least 60 to 80 million dollars promoting its new "We Speak Car" ad campaign to date.

13. FAS has been, and is likely to continue to be, irreparably harmed and damaged by Ford's acts of unfair competition if Ford is not restrained, in that FAS has suffered and is likely to suffer a loss of sales and profits each time customers believe that services of Ford are provided, operated, sponsored, endorsed, authorized, recommended, or warranted by FAS, and FAS has no adequate remedy at law.

14. FAS has also been, and is likely to continue to be, irreparably harmed and damaged by Ford's acts of unfair competition, unless Ford is restrained, in that FAS has suffered a destruction of goodwill on each occasion that its customers believe that the services of Ford are provided, operated, sponsored, authorized, endorsed, recommended, or warranted by FAS, or vice versa, and FAS has no adequate remedy at law.

COUNT I

(False Designation of Origin and Unfair Competition in Violation of 15 U.S.C. §1125(a))

15. FAS repeats and realleges the averments contained in paragraphs 1 through 14 of this Complaint as if set forth fully stated herein.

16. The WE SPEAK CAR mark, the public recognition thereof, and the public association thereof with FAS are protected under Section 43(a) of the Lanham Act, 15 U.S.C. §1125(a).

17. FAS has never authorized Ford to use the WE SPEAK CAR mark or any other mark in connection with its services or otherwise.

18. Ford has, without the consent of FAS, used “We Speak Car” in connection with its automobile advertising and sales, such use being in interstate commerce.

19. Upon information and belief, Ford has utilized “We Speak Car” with the knowledge and belief that such unauthorized use in commerce has caused and is likely to cause confusion, or to cause mistake, or to deceive the users of FAS’s services as to the affiliation, connection, or association of FAS with Ford.

20. Ford’s use of “We Speak Car” in interstate commerce has caused or is likely to cause confusion, or to cause mistake, or to deceive consumers and merchants as to the origin, sponsorship, or approval of FAS’s or Ford’s services.

21. Ford’s conduct constitutes false designation of origin and unfair competition as proscribed by Section 43(a) of the Lanham Act, 15 U.S.C. §1125(a).

COUNT II
(Trademark Dilution in Violation of 54 Pa. C.S. § 1124)

22. FAS repeats and realleges the averments contained in paragraphs 1 through 21 of this Complaint as if fully stated herein.

23. FAS’s mark WE SPEAK CAR is famous in the Commonwealth of Pennsylvania and became famous in the Commonwealth of Pennsylvania before March of 2009, when Ford began its “We Speak Car” ad campaign.

24. Ford’s use of “We Speak Car” causes dilution of the distinctive quality of FAS’s WE SPEAK CAR mark.

25. Ford’s conduct constitutes trademark dilution and injures the business and reputation of FAS under 54 Pa. C.S. § 1124.

COUNT III
(Common Law Trademark Infringement and Unfair Competition)

26. FAS repeats and realleges the averments contained in paragraphs 1 through 25 of this Complaint as if set forth fully stated herein.

27. Ford's conduct in connection with the use of "We Speak Car" constitutes trademark infringement and unfair competition at common law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays:

(a) that Ford and those persons in active concert or participation with Ford, be preliminarily and permanently enjoined and restrained from using "We Speak Car" or any other mark or phrase confusingly similar to WE SPEAK CAR;

(b) that all labels, signs, catalogs, literature, marketing materials, and advertisements of Ford which include the phrase "We Speak Car" and/or any other mark confusingly similar to WE SPEAK CAR be delivered and/or destroyed as the Court shall direct;

(c) that Ford be ordered to account to FAS for any and all profits derived by it by reason of the acts complained of in this Complaint;

(d) that Ford be ordered to pay damages to FAS for injuries sustained by FAS as a result of Ford's infringement and dilution, in an amount to be determined at trial;

(e) that Ford be ordered to pay damages to FAS for injuries sustained by FAS as a result of Ford's false designations of origin and unfair competition, in an amount to be determined at trial;

(f) that Ford be ordered to pay treble damages to FAS;

(g) that FAS be awarded its costs of this action including reasonable attorney's fees;
and

(i) that FAS be awarded such further relief as the Court shall deem just and appropriate.

Respectfully submitted,

Dated: March 27, 2009



J. Matthew Pritchard IV, PA. ID 85732
John W. McIlvaine III, PA. ID 56773
Kent E. Baldauf, Jr., PA. ID 70793
Daniel H. Brean, PA. ID 208711

THE WEBB LAW FIRM
700 Koppers Building
436 Seventh Avenue
Pittsburgh, PA 15219
Telephone: (412) 471-8815
Facsimile: (412) 471-4094

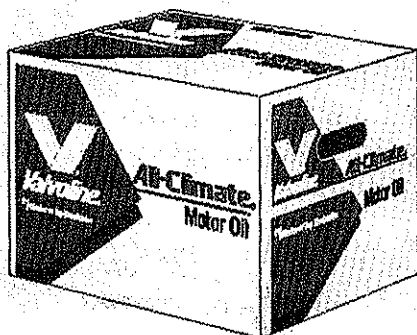
Counsel for Frank's Auto Supply, Inc.

FRANK'S AUTO SUPERMARKET



Valvoline

MOTOR OIL



REG. 17.88

10W-30
10W-40
5W-30

FREE GAS!
Get a \$5 Gas Check
by Mail with a case of
Valvoline Motor Oil!

15⁸⁸
12 BOTTLE CASE

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- No Collapsing or Bowing
- Available in Black

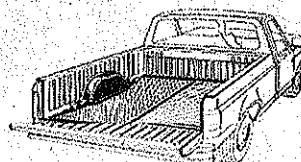
REG. 179.99

149⁸⁸

EZ TILT TONNEAU COVER (REG. 279.99).....249.88

BED LINER

Protects Truck Bed and Rails from Tough-Guy Abuse

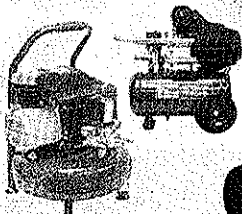


REG. 149.99
(Includes Tailgate)

109⁸⁸

-ALL TRUCKS SAME LOW PRICE-

COMPRESSORS



- 2 HP Compressor
- Easy Tow
- 6 or 4 Gallon Tank

99⁸⁸

Your Choice:
(MACPDR or MACPHDR)

5 HP 20 GALLON (VERTICAL).....188.88

CAR DOLLY



Move Any Car
Backward, Forward,
or Sideways!

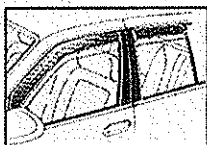
REG. 49.99

36⁸⁸ PAIR

VENTVISORS

Vantshade
Company

BUGFLECTOR II

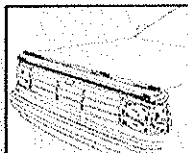


- Keeps Rain Out & Fresh Air in
- Made of High Impact Durable Acrylic!

26⁸⁸

2- DOOR
Reg. 29.99

4-DOOR VENTVISORS (REG. 39.99).....36.88



Reg. 39.99

34⁸⁸

- Wraparound Design
- No Drilling or Tools Required
- Lifetime Warranty

WORK BENCH



- Sturdy Clamping Bench
- Heavy Steel Construction
- Tool Storage Area In Base

REG. 19.99

13⁸⁸

WE SPEAK CAR.

Prices Good
June 8-14, 2003